

23NWCV02445 23NWCV02445

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#17

ESQUIVIAS v.

CLEARMANS STEAK N STEIN INN INC.

CASE NO.: 23NWCV02445

HEARING: Wednesday, August
12, 2026, at 9:30 AM

I.

Plaintiff's Motion for Leave to file a Third
Amended Complaint is GRANTED.

II.

Defendant's Motion to Seal Records is GRANTED.

Plaintiff to give Notice.

The

Proposed Third Amended Complaint attached as Exhibit A
to Robert A. Odell's Declaration is NOT deemed filed and served as
of the date of the issuance of this Order. Plaintiff is ORDERED to FILE and SERVE the
Third Amended Complaint within 5 days of the date of the Court's issuance of
this Order.

Background

This wrongful termination action was filed by Plaintiff

JULIA ESQUIVIAS ("Plaintiff") against Defendants CLEARMAN'S STEAK 'N STEIN INN, INC. ("Defendant") and GABRIEL ZAMORA on August 4, 2023.

On September 30, 2024, Plaintiff filed the operative Second Amended Complaint ("SAC").

On December 4, 2024, Plaintiff filed the Subject Motion for Leave to File a Third Amended Complaint ("TAC"). Plaintiff's proposed TAC includes the following amendments: (1) including J. Foley Enterprises, Inc. as a named defendant; (2) including additional factual allegations regarding proposed wage and FEHA claims; (3) including additional causes of action for (i) Failure to Provide Reasonable Accommodation; (ii) and (iii) Meal and Rest Period Violations; (iv) Failure to Pay Earned Wages; (v) Inaccurate Wage Statements; (vi) Waiting Time Penalties; and (vii) Assault; (4) and clerical amendments to clarify existing causes of action.

On January 24, 2025, Defendant filed the instant motion to seal.

Leave to Amend

California recognizes "a general rule of...liberal allowance of amendments..." (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.) It has also long been recognized that "even if the proposed legal theory is a novel one, 'the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.'" (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) In light of great liberality employed when ruling on a motion for leave to amend, the court will not normally consider the validity of the proposed amended pleading since grounds for demurrer or motion to strike are premature. Thus, absent prejudice to the opposing party, courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial." (emphasis added.) (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

Include J.Foley Enterprises, Inc. as a Named Defendant

Plaintiff argues she first learned of J.Foley's potential involvement during Ms. Harootunian's deposition.

Defendant argues Plaintiff was aware of J.Foley's limited connection with her employment prior to Ms. Harootunian's deposition. Defendant asserts that during Plaintiff's employment, J.Foley provided payroll and human resources services to Defendant.

However, while the evidence shows Plaintiff was aware of J.Foley's name, Plaintiff did not learn of J.Foley's potential involvement until Ms. Harootunian's deposition. Indeed, Plaintiff did not know that Ms. Harootunian (Defendant's HR Manager) was employed by J. Foley until the Subject Deposition.

Defendant's argument that Counsel new of J.Foley's role based on prior matter is irrelevant. The relevant knowledge is Plaintiff's knowledge. (CCP § 474.)

The Court also find the proposed TAC includes sufficient allegations of J. Foley's control over Plaintiff.

Plaintiff alleges:

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Defendants CLEARMAN'S and J. FOLEY employed Plaintiff and at all times during her employment, Plaintiff was fully qualified for her position and was performing her job duties well.(TAC ¶ 1.)

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At all times relevant hereto, Defendant J. FOLEY and Defendant CLEARMAN'S were the agents, servants, and alter-egos of each other and joint employers. As such, Defendant J. FOLEY, were the alter egos of Defendant CLEARMAN'S, and there exists, and at all times herein mentioned has existed, a unity of interest and ownership between Defendant J. FOLEY and Defendant CLEARMAN'S such that any separateness between them has ceased to exist in that Defendant J. FOLEY completely controlled, dominated, managed, and operated the other Defendants. (TAC ¶ 12.)

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Plaintiff was, and at all times mentioned

herein, an employee of CLEARMAN'S and J. FOLEY. J. FOLEY was, and at all times mentioned herein, a joint employer and/or alter ego and/or trustee of CLEARMAN'S which exercised control over Plaintiff's work and/or working conditions. (TAC ¶ 23.)

Lastly, Defendant's discussion on the pending appeal regarding J.Fooley's Motion to Quash is MOOT.

Additional Claims and Allegations

Defendant contends Plaintiff was unjustified in waiting two years to add new claims and allegations.

The Court finds that the record indicates otherwise. Indeed, Plaintiff filed her Complaint in August of 2023. The parties engaged in mediation in October of 2024. Shortly after, Plaintiff notified Defendant of her intent to include wage and hour and failure to accommodate claims.

The Court finds Plaintiff was justified in waiting to amend her Complaint as the parties meaningfully engaged in mediation shortly beforehand.

Moreover, delay alone is an insufficient basis to deny leave to amend. (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) Indeed, leave to amend shall be granted unless there is actual and substantial prejudice on the opposing party. (Cf. Leader v. Health Indus. Of Am., Inc. (2001) 89 Cal.App.4th 603, 610.)

The Court does not find prejudice here. Discovery remains open and trial is set until October 12, 2026.

Further, Plaintiff contends that the amendment relates back to the original complaint filed on August 4, 2023, as it arises from the same set of facts and course of conduct. (Smeltzley v. Nicholson Manufacturing Co. (1977) 18 Cal.3d 932, 939-94.)

Plaintiff's FEHA and wage violation claims have a three-year statute of limitations. (Gov. Code § 12960, Labor Code §§ 226.7, 201-204, 226, and 512.) Plaintiff's constructive termination occurred in April 2022, and thus amendments filed in December 2024 are timely.

In light of the liberality associated with granting motions for leave to amend up to and including the time of trial, the Court finds that Plaintiff should be afforded the opportunity to make the proposed amendments. Defendant maintains the ability to attack Plaintiff's pleading on the merits via motion practice procedures (e.g., demurrer or motion for summary judgment).

Plaintiff's Motion for Leave to File a Third Amended Complaint is GRANTED.

Motion to Seal

Defendant requests for the following document(s) filed in connection with Plaintiff's Motion for Leave to File a Third Amended Complaint, be filed under seal:

1. All

unredacted copies of "Exhibit H" to the Declaration of Robert A. Odell in Support of Plaintiff Julia Esquivias' Notice of Motion and Motion for Leave to File the Third Amended Complaint filed/lodged by Plaintiff with this Court, including the copy Plaintiff filed on or about December 4, 2024, which a currently "locked" by the court clerk, and the copy Plaintiff lodged conditionally under seal on January 14, 2025; and

2. Any

and all other underacted papers and records that Plaintiff lodged with the Court conditionally under seal in connection with the documents and pleadings listed above.

"The court may order that a record be filed under seal only if it expressly finds facts that establish: [¶] (1) There exists an overriding interest that overcomes the right of public access to the record; [¶] (2) The overriding interest supports sealing the record; [¶] (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; [¶] (4) The proposed sealing is narrowly tailored; and [¶] (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).)

Here, there is an overriding interest that overcomes the

right of the public to access the Subject Records, as they pertain to Mr. Zamora's personnel records. While employees have the right to inspect their personnel records, the Court does not find authority suggesting that the public has an unfettered right to access such records. (See Labor Code § 1198.5(a).) Indeed, a generally a party must file a subpoena to access an employee's personnel records. (CCP § 1985.6(e).) Accordingly, this privacy interest supports sealing the Subject Records.

The Court also finds Mr. Zamora's privacy interested will be prejudiced if the Subject Records are not sealed because it would (1) hinder Mr. Zamora's prospective employment opportunities and (2) unduly prejudice Mr. Zamora in the instant action.

Defendant's request is narrowly tailored as it only pertains to Mr. Zamora's confidential employment record.

Lastly, the Court finds there are no less restrictive means to protect Mr. Zamora's privacy interest. Indeed, the Subject Documents were lodged unredacted, the Court does not find that a protective order can resolve the issue. Simply put, you can't put the genie back in the bottle.

Defendant's Motion to Seal is GRANTED.